

Court No. - 46

Case :- WRIT - C No. - 19589 of 2020

Petitioner :- Amar Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rajesh Kumar Gautam

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

On the request of learned counsel for the petitioner, the case is passed over for the day.

Put up this case on 16.12.2020 as unlisted.

Order Date :- 7.12.2020

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Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rajesh Kumar Gautam

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard learned counsel for the petitioner, Sri Ashutosh Dwivedi, Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel for respondent nos.2 and 3 and learned Standing Counsel for the State-respondent no.1.

Instant writ petition has been filed seeking following reliefs :

"(i) Issue a writ, order or direction in the nature of certiorari quashing the impugned demand notices dated 28.03.2019 amounting Rs.1,63,656/- vide letter No.2085/VI.VI.Kh. (II) Agra/Sec-3 issued by the respondent no.2 to the petitioner on the basis of alleged checking report no.724 dated 28.11.2018.

(ii) Issue a writ, order or direction in the nature of mandamus directing the respondent no.2 to decide the letter dated 11.04.2019 moved by Secretary, Krishi Utpadan Mandi Samiti, Agra, meanwhile the effect and operation of the impugned demand notices may kindly be kept in abeyance."

Submission of learned counsel for the petitioner is that he was allotted a government quarter by the Secretary, Krishi Utpadan Mandi Samiti in the year 2016 and thereafter he vacated the said premises on 31.07.2017. However, petitioner has been served with a demand notice dated 28.03.2019 for recovery of a sum of Rs.1,63,656/- towards electricity dues. It is submitted by learned counsel for the petitioner that petitioner has never been served with any provisional assessment notice, and hence, the entire proceedings initiated against him by the respondent-Power Corporation is absolutely arbitrary and illegal as well as in violation of principles of natural justice. It is further contended that respondent-Power Corporation has not proceeded in accordance with the provisions contained in Section 126 (3) of the Act, 2003 and Clause 6.8/8.1 of

the Electricity Supply Code, 2005 (in short ' Code, 2005') as no opportunity of hearing has been afforded to the petitioner.

However, learned counsel appearing on behalf of respondent-Power Corporation fairly submits that after checking the premises of the petitioner, provisional assessment was made, and notice in this regard was sent to the petitioner, but he is not aware about the mode of service. However, he has supplied the copy of provisional assessment notice and checking report to the learned counsel for the petitioner in the Court today.

Be that as it may. We are not at all convinced that the provisional assessment shall be treated as final assessment without giving any opportunity of hearing.

At this stage, we deem it proper to reproduce paragraph 16 of the judgment passed in the case of **Shishir Jain vs. Paschimanchal Vidyut Vitran Nigam Ltd. and another, 2017 (3) AWC 3084** by a Division Bench of this Court. The relevant paragraph 16 of aforesaid judgment reads as under :

"16. Be that as it may, in case there is no final assessment as suggested by the learned counsel for the respondent, the petitioner cannot be compelled to deposit the amount of provisional assessment. Without making final assessment after considering the objection and giving opportunity to the petitioner, he cannot be compelled to deposit any amount. In such circumstances, the two impugned notices dated 4.3.2017 issued by respondent no.2 are not liable to be sustainable and are hereby quashed."

In view of aforesaid, we are of the opinion that petitioner could not be compelled to deposit any amount on the basis of provisional assessment without affording any opportunity of hearing, while making final assessment. The entire procedure adopted by respondent-Power Corporation de hors the statutory provisions of Section 126 of the Act, 2003 and Clause 6.8/8.1 of the Code, 2005. The Clause 8.1 of the Code, 2005 provides the procedure to be adopted by the licensee for inspection, provisional assessment, hearing and final assessment in the case of theft of electricity. In the present case, amount which is mentioned in the provisional assessment has been treated as final assessment without affording any opportunity of hearing, hence, the same is in violation of

principles of natural justice.

Considering the facts and circumstances of the case, but without entering into the merits of the case, the writ petition is disposed of directing the petitioner to move a fresh representation within two weeks before the concerned respondent authority along with a copy of this order, who shall consider the representation of the petitioner and decide the same by passing an appropriate, reasoned and speaking order after giving due opportunity of hearing to the petitioner, as expeditiously as possible, preferably within a period of four weeks from the date of filing of the representation.

For a period of six weeks from today or till final decision on petitioner's representation, whichever is earlier, the demand notice dated 28.03.2019 shall be kept in abeyance.

It is made clear that if the petitioner fails to file the representation as indicated above, he shall not be entitled to get the benefit of this order.

Order Date :- 1.2.2021
Manish Himwan